

Christopher D. Mandarich SB 220693

Teona Pipia SB 343337

Martin Weingarten SB 201906

Sarkis Karayan SB 316926

Jomari Lucero SB 347716

Veronika V. Rakhlina SB 362341

MANDARICH LAW GROUP, LLP

P.O. Box 109032

Chicago, IL 60610

Phone: 877.285.4918

Facsimile: 818.888.1260

Mandarich Law Group, LLP California Debt Collector License Number 10795-99.

Attorneys for Plaintiff: LVNV Funding LLC

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**SUPERIOR COURT OF CALIFORNIA,
IN AND FOR THE COUNTY OF LOS ANGELES**

LVNV Funding LLC

Plaintiff,

vs.

Peter Stincer, an individual

; and DOES 1 through 100

Defendant.

Case No.: 24CHLC00255

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF
PLAINTIFF'S REQUEST FOR
PREJUDGMENT INTEREST
PLEADING REQUIREMENT**

I.

INTRODUCTION

The Declaration in Support of Calculation of accrued interest and attorney fees submitted by LVNV Funding LLC (hereinafter "Plaintiff"), pursuant to California Civil Code Section 3287 establishes the right to prejudgment interest. A general prayer in a Complaint is adequate to support an award of prejudgment interest.

II.

FACTS AND PROCEDURAL HISTORY

This is a limited civil collection action. Plaintiff filed a Complaint on January 4 2024, asserting causes of action of Account Stated and Open Book Account. In the Complaint Plaintiff prayed for judgment against the Defendant including “such other and further relief as the Court deems just and proper”. Defendant failed to timely respond. Contemporaneously herewith, Plaintiff has submitted a default judgment package which included the Declaration in Support of Calculation of accrued interest and attorney’s fees and proposed judgment which included award of prejudgment interest.

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III.

ARGUMENTS AND AUTHORITIES

A. Procedure to Obtain Prejudgment Interest Under Section 3287(a)

As a conceptual matter, prejudgment interest is an element of damages, not a cost of litigation, because it compensates the plaintiff for the loss of the use of property or money during the period before the judgment is entered. (*North Oakland Medical Clinic v. Rogers* (1998) 65 Cal.App.4th, 824 at pp. 828-830 (hereinafter "*Rogers*")). Prejudgment interest is governed by Civil Code Section 3287, which states:

“A person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day, except when the debtor is prevented by law, or by the act of the creditor from paying the debt. This section is applicable to recovery of damages and interest from any debtor, including the state or any county, city, city and county, municipal corporation, public district, public agency, or any political subdivision of the state.” (Civil Code § 3287(a))

Otherwise stated, under section 3287(a), "[a] person who is entitled to recover damages that are 'certain, or capable of being made certain by calculation' is also entitled to recover prejudgment interest on that amount from the date that the right to recover arose." (*Collins v. City of Los Angeles*, 205 Cal.App.4th 140, 150-151 (2012)). Pursuant to section 3287(a), "the trial court has no discretion - it must award prejudgment interest from the first day there exists both a breach and a liquidated claim." (*Watson Bowman Acme Corp. v. RGW Construction, Inc.*, 2 Cal.App.5th 279, 293 (2016)); *Rogers*.

The language of the statute entitles Plaintiff to recover interest without establishing a particular procedure to request prejudgment interest. "No statutes specify the timing or mechanism for seeking prejudgment interest ... [and] no rule of court specifies when prejudgment

1 interest must be sought." (*Watson Bowman Acme Corp. v. RGW Construction, Inc.*, 2 Cal.App.5th
2 279, 297 (2016); *Steiny & Co. v. Electric Supply Co.*, 79 Cal.App.4th 285, 294 (2000)). However,
3 California case law establishes that a motion for prejudgment interest is "timely if made within
4 the 'time limits for a motion for new trial (Code Civ. Proc. § 659).'" (*Watson Bowman Acme Corp.*
5 *v. RGW Construction, Inc.*, 2 Cal.App.5th 279, 297 (2016), quoting *Rogers*). The court in *Rogers*,
6 held that:
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8 "In our view, prejudgment interest should be awarded in the judgment on the basis
9 of a specific request therefor made before entry of judgment. This view is buttressed
10 by California Rules of Court, rule 875, which provides: "The clerk shall include in
11 the judgment any interest awarded by the court and the interest accrued since the
12 entry of the verdict." (Cal. Rules of Court, rule 875.)"

13 By submitting the Declaration in Support of Calculation of accrued interest and attorney's
14 fees and requesting an award of pre-judgment interest in its proposed judgment before entry of
15 judgment, Plaintiff therefore satisfied the requirements set in Civil Code and California case law.

16 **B. Prejudgment Interest Does Not Require Specific Prayer for Relief in the Complaint**

17 In the Complaint Plaintiff prayed for judgment against the Defendant which included
18 "such other and further relief as the Court deems just and proper". The California case law
19 established that the general prayer in the complaint is sufficient to award the prejudgment interest.
20 The court in *Segura v. McBride* (1992) 5 Cal.App.4th 1028, 1041 held that"

21 "In his complaint Segura included a general request for "such other and further relief
22 as the Court deems just and proper." This prayer is sufficient for the court, on its
23 own, to invoke its power to levy such prejudgment interest as it deems just and
24 equitable."

25 Further, the court in *Rogers* held that "**A general prayer in the complaint is adequate**
26 **to support an award of prejudgment interest.**"

27 Plaintiff's Complaint requested prejudgment interest by asserting the following:
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1 “WHEREFORE, Plaintiff prays for judgment against the Defendant as follows:

- 2 1. For the damages and money in the sum of \$6,296.35,
3 2. For reasonable attorneys fees pursuant to statute;
4 3. For costs of suit incurred; and
5 4. **For such other and further relief as the Court deems just and proper.**
6 5. Plaintiff remits all damages in excess of the jurisdictional amount of this Court.”

7 A prayer in the Complaint filed by Plaintiff for "such other and further relief as the Court
8 deems just and proper" is "sufficient for the court, on its own, to invoke its power to levy such
9 prejudgment interest as it deems just and equitable." *Segura v. McBride* (1992) 5 Cal.App.4th
10 1028, 1041; see also *Newby v. Vroman* (1992) 11 Cal.App.4th 283, 286.

11 **III. CONCLUSION**

12 An award of prejudgment interest under Civil Code, section 3287 is appropriate here. For
13 the foregoing reasons, Plaintiff respectfully requests that this Court grant Plaintiff's request for
14 prejudgment interest.

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18 Dated: July 22, 2025

19 **Mandarich Law Group, LLP**

20 By: 
21 [X] Christopher D. Mandalich, Esq.
22 *Attorneys for Plaintiff*
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